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**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK**

Kristin M. Peterson,

Plaintiffs,

-against-

**Katonah Lewisboro School District; Katonah
Lewisboro School District Board of Education, Paul
Kreutzer, Superintendent of Schools, Katonah
Lewisboro School District, in his individual and
corporate capacity; Connie Hayes, Director of
Special Services, Katonah Lewisboro School District,
in her individual and corporate capacity; Jessica
Godin, as Principal of Katonah Elementary School,
in her individual and corporate capacity; unknown
agents and assigns of Katonah Lewisboro School
District,**

Defendants.

INDEX NO.: 13cv0051(VLB)

**PLAINTIFFS' FIRST
AMENDED COMPLAINT**

PLAINTIFFS' FIRST AMENDED COMPLAINT

INTRODUCTION AND NATURE OF ACTION

1. Plaintiff Kristin Peterson's (hereinafter "Peterson" or "Plaintiff") claims arise out of a most egregious form of discriminatory conduct perpetrated on Plaintiff by Defendants. Plaintiff was subjected to unlawful discrimination in her employment as based on her,

disability and in retaliation for Peterson's advocacy on behalf of special needs students in her charge. Plaintiff's claims include but are not limited to intentional infliction of emotional distress, defamation, negligent supervision, negligent hiring, negligent credentialing, retaliation, hostile work environment, discrimination based on disability, violations of civil rights under both the state and federal law, violation of her civil rights as pursuant to Americans With Disabilities Act, 42 USCS § 12203, and violation of her civil rights and the Rehabilitation Act, 29 U.S.C. § 701 et seq., as well as state based claims including but not limited to intentional infliction of emotional distress, defamation, defamation per se, negligent supervision, and negligent hiring and retention. Plaintiff, by her attorneys, Law Office of Peter D. Hoffman, P.C., complaining of Defendants, alleges as follows:

PARTIES

2. Plaintiff Peterson is a resident of North White Plains, NY with a place of residence at 50 McDougal Drive, North White Plains, NY 10603. Peterson is a female over the age of forty with a disability who was hired as a social worker by Defendant KLSD and BOE in 1997. See Exhibit "A," Resume of Kristin Peterson. Plaintiff is a sixteen year employee of Defendant District and Defendant BOE who never experienced any adverse employment circumstance until shortly after the hiring of Defendants Kruetzer and Hayes in the summer of 2011.
3. Defendant Katonah Lewisboro School District ("KLSD") is a local school district situated in a suburban community of 21,000 people located in Westchester County, NY. The school district serves students living within the towns of Cross River, Goldens Bridge, Katonah, Lewisboro, North Salem, Pound Ridge, Purdys, South Salem,

Waccabuc and Vista. Its administrative offices are located at P.O. Box 387, Katonah, NY 10536.

4. Defendant KLSD Board of Education (“BOE”) is the board of education for the above mentioned KLSD, located at P.O. Box 387, Katonah, NY 10536. The KLSD BOE members include: Mark Lipton, Charles Day, Peter Breslin, Janet Harckham, Marjorie Schiff, Stephanie Tobin and Peter Treyz.
5. Dr. Paul Kreutzer (“Kreutzer”) is the Superintendent of Schools for KLSD. He is sued in his individual and corporate capacity.
6. Connie Hayes (“Hayes”) is the Director of Special Services at KLSD. She is sued in her individual and corporate capacity.
7. Jessica Godin (“Godin”) is the Principal of Katonah Elementary School at KLSD. She is sued in her individual and corporate capacity.
8. Unknown and unnamed agents and assigns of KLSD and BOE were also involved in this matter. At all relevant times Unknown Defendant agents and assigns were acting under color of state law and within the scope of their capacity as employees of KLSD and BOE.

JURISDICTION

9. Jurisdiction of this court is invoked pursuant to Defendant’s Notice of Removal to United States District Court, Southern District of New York filed January 3, 2013. The Court may also exercise jurisdiction over state claims as pursuant to 28 U.S.C. §1367.
10. Venue is proper in this action pursuant to 28 U.S.C. § 1391.
11. Plaintiff served the Notice of Claim on Defendants, at least thirty days have elapsed since the Notice was filed before said Complaint was filed; and Defendants have neglected or refused to adjust or satisfy the claim, pursuant to Gen. Mun. §50-i(1)(b). This Court may

exercise supplementary jurisdiction over state claims pursuant to 28 U.S.C. §1367.

12. Jurisdiction is appropriate because Plaintiff filed a claim with the Equal Employment Opportunity Commission and a Right to Sue Letter was issued on December 27, 2012, EEOC Charge No.520201201700. The same was received by Plaintiff on December 31, 2012.
13. Jurisdiction is further invoked by Defendants' Notice of Removal.

FACTS

PERSONAL HISTORY AND EXPERIENCE

14. Plaintiff Peterson currently is employed as a social worker by KLSD. Her claims stem from a pattern and practice of discriminatory and retaliatory behavior perpetrated upon her by Defendants, their agents and assigns.
15. Plaintiff has an extensive educational and professional background. See Exhibit "A," Resume` of Kristin Peterson.
16. Plaintiff was hired by KLSD, commencing with the 1997 school year to the present, as a social worker for the elementary and middle schools. See Exhibit "A".
17. Up until the events listed herein, Plaintiff never had any disciplinary history with the District.
18. Plaintiff is a tenured employee of the District.
19. Plaintiff was a witness who testified at a deposition in Felton v. KLSD, et al., 08 CIV 9340(VLB) and upon information and belief Defendants harassing and retaliatory conduct starting in September 2011 and continuing was intended, in part, to influence her testimony at trial.
20. Since September of 2011, the District and all Defendants have caused Plaintiff to suffer

discrimination and retaliation, as based on her disability, advocacy on behalf of her students and her speech. This conduct is ongoing through the date of this complaint.

21. Since sometime in September 2011, the District and all Defendants have retaliated against Plaintiff as it concerns her advocacy on behalf of her students, her being a witness in a federal litigation before this Court, and for her advocacy and complaints related to the her disability.
22. Since sometime in September 2011 Plaintiff has been the subject of a retaliatory campaign by all Defendants as it relates to Plaintiff voicing her opinion about a student with a disability at a Committee on Special Education Meeting that was contrary to Defendant Hayes' position and that of counsel for the Defendants at that time, Emily Lucas.
23. In 1998, Plaintiff was diagnosed with an anaplastic astrocytoma grade 3 brain tumor, which was invasive and advanced. She was given little chance of survival at Sloan Kettering where she received treatment. Subsequently, she developed Hodgkin's Disease. From the illnesses and treatment (surgery, chemotherapy and radiation), Plaintiff was left with several disabilities. Plaintiff's disabilities are not readily apparent. She is visually impaired. She lacks peripheral vision and has chronic blurry vision in her right eye as a result of the tumor growing into the optic nerve and radiation damage.
24. Due to her visual impairments, Plaintiff finds it stressful and challenging to drive at night, particularly with inclement weather or when she is fatigued. Plaintiff is very careful with planning night time driving and will not drive on unfamiliar roads, or for more than a half an hour.
25. Plaintiff suffers from compromised equilibrium.

26. Plaintiff's body's ability to regulate its temperature has been compromised and she must dress in such a way as to prevent overheating. She easily becomes dehydrated and can experience severe heat exhaustion. Her treating doctor, Dr. Mary Salke, recommended the following accommodations, which have worked in keeping Plaintiff healthy and stable for the past fourteen years:

- a. Wear sneakers/athletic shoes to provide stability;
- b. Drink fluids/water throughout the day and must be allowed to have water during meetings/conferences;
- c. Wear loose fitting/comfortable clothing that allow Plaintiff to manage body temperature (e.g. short pants);
- d. Have movement breaks during long meetings;
- e. Work between the hours of 7 AM and 4 PM because this is when Plaintiff is best able to concentrate. Additionally, working during this time period allows her to drive to work during daylight hours.

27. KLSD and BOE and all Defendants, at all times, was aware of Plaintiff's disabilities as she was an employee when she became ill and through her recovery. Up until sometime in late August / early September 2011, accommodations related to these disabilities was never an issue.

**PATTERN AND PRACTICE OF DISCRIMINATORY, RETALIATORY AND
TORTIOUS CONDUCT BY KLSD AND BOE AND ALL DEFENDANTS AGAINST
PETERSON RELEVANT TO ALL CAUSES OF ACTION**

28. KLSD and BOE and all Defendants have engaged in a pattern and practice of discriminatory, harrassing, deliberately indifferent, tortious, retaliatory and wrongful conduct against Plaintiff. This campaign against Plaintiff has also resulted in a severely

hostile working environment.

29. On August 26, 2011, Plaintiff received an email asking her to meet with Hayes, Director of Special Services, at 10:00am, a half hour before a scheduled CSE meeting, on September 1, 2011. Plaintiff arrived at the appointed hour, but Defendant Hayes never met with the team or staff.
30. During her attendance at the September 1, 2011 CSE meeting, Plaintiff was a strong advocate for the student. However, Ms. Emily Lucas, district counsel, insulted staff who are familiar with the students. Plaintiff confronted Ms. Lucas regarding her behavior. Both Ms. Lucas and Hayes took retaliatory steps against Plaintiff at this meeting and following this meeting. Plaintiff met Hayes for the first time at this meeting. The retaliation and discrimination and outrageous conduct suffered by Plaintiff, has from this date forward, has been ongoing and continuing.
31. On September 14, 2011, Plaintiff initiated a meeting with Hayes to discuss the tension felt at the CSE meeting on September 1, 2011.
32. On September 15, 2011, Plaintiff met with Hayes alone because both Hayes and Ms. Sandra Grebinar, Plaintiff's union representative and former union president, decided it was not necessary to have union representation present.
33. Plaintiff tried to explain both her position concerning the CSE meeting to Hayes and her absence from an earlier social worker and psychologist meeting because of a personal emergency. Within moments, Hayes accused Plaintiff of lying, called her a liar and then informed her that "this meeting is over."
34. Immediately thereafter, the fire alarm rang and everyone evacuated the building. Afterwards, Plaintiff stopped by Hayes' office to continue the meeting, but Hayes refused

to answer Plaintiff so she left.

35. On September 16, 2011, Hayes sent out an email saying she will meet with the principals to determine if the after school hours can be used to add 2 hours of staff development time or the 5 hour independent work time.
36. In fact, on September 19, 2011, Plaintiff emailed Ms. Grebinar and Hayes at 8:45am explaining that she already had a proposal for her 5-hour plan to create a curriculum utilizing Aesop's Fables to teach social skills and had already met with Carolann Castellano, Principal of Meadow Pond Elementary School, and Lara Monasch, Psychologist at Meadow Pond, and Dawn Pomeroy, Teacher on Special Assignment, at Meadow Pond, to establish the plan.
37. On September 20, 2011, Plaintiff had to leave a meeting early because she had a prior commitment. This meeting was established less than one week ahead of schedule and was not scheduled on a regular meeting day, Monday afternoons. In fact, most recipients did not see the email until the morning of September 20, 2011 and two other colleagues left soon after Plaintiff did. Furthermore, it was not sanctioned until well after the workday on Monday September 19, 2011 at 5:44PM, when Hayes informed Plaintiff that she was approved for the exchange of time.
38. On September 22, 2011, Hayes sent out an email confirming another meeting scheduled for September 27, 2011 from 2:30 - 4:30. Although several colleagues emailed that they had prior commitments and might be late or leave a bit early from the meeting, no one but Plaintiff was chastised.
39. During the first 2 weeks of school, staff was instructed to come to work on time, sign in and out, and to be cognizant of proper attire.

40. On September 22, 2011, Plaintiff scheduled a meeting with Carol Ann Lee to discuss the dynamic with Hayes and to present a doctor's note regarding her accommodations, which had been in place since 1999. Previously, no one ever questioned Plaintiff's attire, or her keeping early hours and carefully scheduling and attending evening programs. In fact, Plaintiff endured her cancer treatment during her three years awaiting tenure and was granted tenure with no reservations.
41. On September 23, 2011 Ms. Lee's office e-mailed Plaintiff to cancel the meeting.
42. On the same date, KLSD and BOE and its' personnel, (including but not limited to Defendant Hayes), falsely and with malicious intent alleged that Plaintiff's conduct was inappropriate toward a KLSD student in her charge, F.A.
43. Plaintiff knew and worked with Student F.A. for approximately five (5) years. Student F.A. presents on the autistic spectrum, but he is functional. Student F.A. has a fear of automatic flushing toilets. On September 23, 2011, Student F.A. showed visible signs of needing to use the bathroom, and Plaintiff was asked to assist him in the Health Center after he became anxious. Plaintiff placed her left hand on top of his right shoulder and held his right hand with her free hand in order to guide him to the stall.
44. Plaintiff then released F.A. and poured a cup of water into the toilet to show Student F.A. that the toilet would not flush. With each demonstration Student F.A. got closer until he stepped toward the stall on his own. Student F.A. then returned to class.
45. Hayes then appeared and escorted Plaintiff into the Principal's office. When they were in the office Hayes falsely and maliciously accused Plaintiff of "manhandling" and "dragging" the child, and telephoned KLSD and BOE.
46. Ms. Karen Greenwood, the school nurse, witnessed Plaintiff's entire interaction with

Student F.A. Upon information and belief, both Ms. Greenwood and Plaintiff drafted similar statements regarding the incident.

47. Upon information and belief, Hayes did not draft a statement and F.A. was never assessed or evaluated by the school nurse.
48. When Plaintiff left the building at 3:45pm, Hayes had not yet written her statement. Plaintiff was told to report to the District Office on Monday September 26 and she did so.
49. On September 28, 2011, Plaintiff received a letter to report to the District Office. See Exhibit, "B," There, she asked Ms. Lee if this re-assignment only pertained to the intervention on Friday September 23, 2011 and she said "yes" as was witnessed by Ms. Grebinar. At approximately 2:30pm, after sitting in the District Office for the entire day with no assignment, Plaintiff rested her head in her arms, closed her eyes, but she did not fall asleep. In fact, she had begun to feel the effects of emotional distress caused by the Defendants' actions. In response to Ms. Lee's inquiry, Plaintiff stated that she was feeling physically fine, but that she was overtired as she had to put her pet cat to sleep and was having to support her grieving son.
50. Indeed, during Plaintiff's time at the District Office, she was given nothing to do and had no responsibilities despite her many qualifications, skills and experience. However, she was able to compile Aesop's Fable curriculum, working with Ms. Monasch, to finalize the 5-hour proposal (through the computer).
51. Also, on the morning after a tragic murder-suicide of a local family, Plaintiff was asked by numerous District Office staff "why" she was not helping in the crisis response. It was clearly upsetting to several individuals, who are also local taxpayers, that she was not allowed to engage in the crisis intervention. Mr. Michael Jumper, Assistant

Superintendent for Business eventually did ask Plaintiff to research crisis intervention.

52. On October 7, 2011, Plaintiff received a letter from Defendants to report for a psychiatric evaluation by Dr. Allen Reichman on October 13, 2011 at 11:00am. At the evaluation, Dr. Reichman appeared surprised that Plaintiff did not know why she was there. The reasons he gave were that she: (1) refused to leave a meeting with Ms. Hayes, which is untrue; (2) wore shorts (besides there being no dress code, KLSD and BOE and all Defendants have a letter from Plaintiff's doctor explaining her need for accommodations related to clothing); (3) fell asleep at the district office, which is untrue; and (3) the intervention with F.A. on September 23, 2011. Plaintiff was shocked to learn of these false and malicious accusations.
53. Dr. Reichman administered a standardized instrument that was a Xerox copy of the protocol. Upon information and belief, this is not in accordance with standard practice. Thus, upon information and belief, the results of Plaintiff's evaluation by Dr. Reichman are invalid. Notwithstanding, in an October 22, 2011, letter to counsel for the district, Emily Lucas, Esq., Dr. Reichman released Plaintiff to work without restriction.
54. On October 21, 2011, Plaintiff received a hand delivered letter instructing that, as of that day, she was re-assigned to home with full-pay and benefits. Also on October 21, she was directed to attend a meeting on October 26, 2011 at the District Office with Christopher Powers, counsel for KLSD and BOE and all Defendants, and Carol Ann Lee, Director of Human Resources for KLSD and BOE and all Defendants.
55. On October 26, 2011, Plaintiff attended said meeting at the District Office. Sandra Grebinar was also present. Plaintiff was given a letter to read that threatened her with a "3020A" hearing, unless Plaintiff agreed to sign the letter and follow several stipulations,

which included (1) attend counseling, (2) pay a \$5,000.00 fine, (3) stay away from Student F.A., and (4) if she was ever "in trouble again," she would be terminated. The same letter falsely and maliciously accused Plaintiff of "grabb[ing] a special needs student and dragg[ing] him across the floor to the bathroom".

56. Plaintiff and the Union President, Sandra Grebinar, asked for a copy of the letter, but this simple request was refused. Mr. Powers did not allow Plaintiff or Ms. Grebinar, to take a copy of the letter, containing false, malicious accusations. Plaintiff was told to provide a response to this letter by November 2, 2011 or it would be presented to the BOE on November 3, 2011. As Plaintiff did not have a copy of the letter, Plaintiff did not provide said response. Plaintiff has no knowledge of whether this letter was presented to the BOE.
57. On November 16 and 17, 2011, Ms. Grebinar contacted Ms. Lee regarding Plaintiff's attendance at the Crisis Intervention Training scheduled for November 18, 2011. Ms. Lee replied that she could not attend and that "Alice Cronin said that the training was primarily for teaching assistants." However, Plaintiff had previously been approved to attend. See Exhibit "D," Crisis Intervention Training E-mail with Scheduling Information dated November , 9, 2011.
58. On November 16, 2011, Plaintiff reviewed her file at the district office, numbered each page and wrote a detailed log of each page/item. Mrs. Sy Lynch, Secretary, Human Resources, signed Plaintiff's log as she was witness to the review. Plaintiff asked her if there was a second file and she said, "no this is complete".
59. Since her employment by KLSD and BOE and all Defendants in 1997 through receiving her tenure in 2000 and until she spoke out against Connie Hayes, KLSD and BOE and all

Defendants, Director of Special Education and its attorney, Emily Lucas, Plaintiff had never been disciplined and no grievance was ever filed against her. She also never had a negative or punitive letter placed in her personal file. As a direct result of speaking out at the September 1, 2011 CSE meeting, regarding the appropriate educational and social needs of the student, Plaintiff was punished and humiliated and retaliated against by KLSD, BOE and all Defendants.

60. On November 30, 2011, after submission of her Notice of Claim submitted on November 23, 2011, Plaintiff was made aware that Defendant Kreutzer made threatening statements that if she did not withdraw her Notice of Claim, he would initiate a 3020A hearing. Although he could have initiated such a hearing weeks before, such threats were made as a direct result of and in utter retaliation for serving the Notice of Claim.
61. In late 2011 and early 2012, Mr. Kreutzer stated to Ms. Grebinar that he would “get” Plaintiff and that she is “crazy”. See Exhibit “C”, Affidavit of Sandra Grebinar.
62. Plaintiff was allowed to return to work in January of 2012 and she finished the 2011-12 school year in her position as Social Worker at KLSD under threat that a false, retaliatory and injurious Holt letter would be placed in her file. See Exhibit “D,” Holt Letter from Defendant Godin to Plaintiff Peterson dated February 7, 2012 and Letter from Human Resources Director Carol Ann Lee, dated January 25, 2012)
63. Once she returned to work, Plaintiff had no supervision.
64. Hayes met with the Social Workers at KLSD three times during the entire year, although she was supposed to meet with the Department on a monthly basis. Hayes neglected her duties and did not follow her job description.
65. Defendants’ harassing, discriminatory, retaliatory, outrageous and harassing conduct

continued once Plaintiff returned to work.

66. Much of the Defendants conduct directed at Plaintiff was in violation of the Defendants' own Code of Conduct, its own Whistleblower Policy and anti-discrimination policies.
67. After her return, Plaintiff was routinely singled out and subject to disparate treatment for things that were not a violation of the code of conduct or any other regulation at KLSD, such as leaving meetings well after the end of the work day and not being able to accommodate a meeting because Hayes sent out the meeting notice email well after 5:00 PM. Upon information and belief, her peers routinely did such things and were not penalized or reprimanded.
68. Moreover, the Defendants' allegations were false and never pursued through accepted and written policies and procedures for discipline, as almost none of this was addressed in a counseling session or a counseling letter.
69. Furthermore, Plaintiff never received any training upon her return nor did any KLSD employee or any Defendant or their representative speak to her about how to function when she returned.
70. On February 7, 2012, Plaintiff received a letter of counsel, or Holt letter, from Godin, which contained numerous malicious lies and distortions of fact. Not surprisingly, although Godin knew Plaintiff was momentarily leaving to attend her mother's funeral, she chose that moment to deliver said hostile, malicious and fabricated letter.
71. In a letter dated February 15, 2012, Plaintiff provided a response containing 19 points of fact to said Holt letter.
72. In early Spring of 2012, Plaintiff applied to attend a five (5) day Therapeutic Crisis Intervention ("TCI") training in Rhode Island, but was denied the training by KLSD

AND BOE AND ALL DEFENDANTS. Then in April of 2012, Plaintiff was authorized by KLSD AND BOE AND ALL DEFENDANTS to attend the five (5) day TCI training held in Ithaca, NY in August 2012. Plaintiff coordinated her summer plans around the dates. Plaintiff experienced disparate treatment as a result of this conduct as the training went on for other similarly situated employees.

73. On May 31, 2012, Plaintiff met with Hayes, Carolann Castellano, Principal of Meadow Pond Elementary School and Ms. Grebinar. Ms. Hayes scheduled this meeting to discuss Plaintiff's tentative social work assignment for 2012-13. At this meeting, Ms. Hayes was highly complimentary of Plaintiff both professionally and personally. Ms. Hayes also informed Plaintiff that she would assume district-wide Case History responsibilities.
74. On or about June 1, 2012, Plaintiff received a memorandum dated June 1, 2012 from Ms. Lee informing her that the Office of Human Resources and Building Principals had determined that her "tentative assignment" for the 2012-13 school year would be: "Social Worker Case Histories K-12."
75. In a letter dated June 21, 2012, Ms. Grebinar informed Ms. Carol Ann Lee that Plaintiff was pleased to assume the district-wide Case History assignment. In this letter, Ms. Grebinar also addressed a number of concerns Plaintiff had: a BOE resolution appointing her to this role, flexible work hours to meet the requirements of the new assignment, a written understanding that she would need to interface with parents, students and faculty at all six (6) district schools and remuneration, at her salaried, hourly rate of pay for work and training sessions scheduled above and beyond her contracted hours.
76. In the June 21, 2012 letter, Ms. Grebinar also stated that Hayes' praise was juxtaposed

with the events of September 23, 2011, described above, wherein Ms. Hayes falsely and maliciously accused Plaintiff of child abuse. As such, Plaintiff requested that: all documentary references to the events of September 23, 2011 and thereafter be expunged from her personnel file, that she be compensated for all legal fees incurred and paid because it was necessary to hire an attorney to represent herself in the face of these false and malicious accusations, and that she receive financial compensation for all damages as a result of Ms. Hayes' vengeful, false and malicious accusations and confabulations.

77. In a letter dated June 26, 2012, Kreutzer informed Plaintiff that they had decided that her assignment would remain as "social worker" at Katonah and Meadow Pond Elementary Schools. This was evidence of further retaliation against Plaintiff.
78. In a letter to Ms. Grebinar dated July 6, 2012, in response to her June 21, 2012 letter, Kreutzer stated that Plaintiff's change of assignment had been revoked and the demands of Ms. Grebinar's June 21, 2012 letter were denied.
79. Furthermore, Kreutzer falsely and maliciously stated that Plaintiff's behavior at a June 21, 2012 meeting was disruptive and unprofessional, and that Plaintiff made an insulting statement.
80. In a letter dated July 8, 2012, Plaintiff responded to Kreutzer's distortions of the truth as to what transpired at the June 21, 2012 meeting. Plaintiff was not, in fact, disruptive or unprofessional, and Plaintiff never made the insulting statements. Plaintiff's change in assignment was directly related to the September 23, 2011 intervention. Since Mr. Kreutzer never communicated with Plaintiff about the intervention, she took the opportunity to discuss it with him at the meeting. However, he continually interrupted her and talked over her, all in an effort to silence her.

81. In a memorandum dated August 1, 2012, Plaintiff was informed by Scott Persampieri that the social work assignments had been finalized and that her assignment would be a Social Worker Case Histories K-12 at Katonah Elementary and Meadow Pond Elementary Schools. This is the job assignment that was discussed at the May 31, 2012 meeting with Hayes and Ms. Castellano and then confirmed with Plaintiff's assignment letter dated June 1, 2012. These repeated assignment changes are hostile actions and interfere with Plaintiff's ability to plan and be goal oriented with regard to her job assignment and to provide appropriate services to disabled students as required by federal and state law.
82. During the second week in August of 2012, Plaintiff contacted Hayes regarding her expenses for the TCI training. She informed Plaintiff, via email, that since they had not figured out how to train the staff, they were not training anyone else at this time. Hence, Plaintiff was denied the TCI training in Ithaca, NY only two (2) weeks prior to the event. Furthermore, it was hostile, retaliatory, evidence of disparate treatment, and abusive to not let Plaintiff know sooner that such a decision had been made.
83. Plaintiff received an email from Ms. Castellano dated August 28, 2012 that providing her Tentative Schedule for 2012-2013. as follows: Monday, Wednesday and Friday at Meadow Pond, Tuesday and Thursday at Katonah Elementary School. Plaintiff spoke with Ms. Castellano and explained that this was not appropriate given the number of Individual Education Plan (IEP) students with counseling services. Ms. Carolann Castellano responded that Hayes had provided her with inaccurate information.
84. Plaintiff sent an email, dated August 28, 2012 to Ms. Castellano, Godin and Hayes identifying the specific number of counseling sessions and the correct number of

students. Plaintiff suggested a revised schedule, which also made her available for Response To Intervention (“RTI”) meetings that are held in the respective buildings.

85. Plaintiff’s proposed schedule was denied, which is further evidence of a hostile work environment, retaliation disparate treatment and KLSD and BOE and all Defendants denying Plaintiff the ability to perform her job.

86. Defendants Kruetzer and Hayes were new hires at the beginning of the 2011-12 school year and it was apparent that they were not prepared, not properly or lawfully hired or credentialed by Defendant BOE, not being properly or lawfully supervised by Defendant BOE, and not being properly or lawfully trained and prepared by Defendant BOE to handle their employment responsibilities.

87. Despite the resulting disabilities from her cancer treatments, Plaintiff has functioned extremely well with few, but significant, accommodations. Defendants are well aware of Plaintiff’s cancer history, treatment, disabilities and accommodations. Defendants’ failure to acknowledge Plaintiff’s disabilities constitutes negligence and willful indifference. Plaintiff does not function as a disabled person because, with said few accommodations and careful health care, she functions typically.

88. For years Defendants failed to evaluate Plaintiff’s job performance. But after Plaintiff complained about this in her EEOC complaint, her Notice of Claim and finally in her Municipal Law §50-h deposition on September 19, 2012, she was finally formally observed and evaluated on October 25, 2012. It was not until December 11, 2012 that the Observation Findings were provided to Plaintiff and the findings were very good and did not indicate a problem with Plaintiff’s work. Notwithstanding the ongoing discrimination, harassment, deliberate indifference and retaliation, the formal observation and evaluation

showed that Plaintiff was performing her job well.

89. Defendants have discriminated against Plaintiff based on her visual and physical disabilities as a result of cancer treatments. An example of this would be Defendants' ignorance regarding her documented, medical need to wear loose-fitting clothing, of which they complained despite the fact that Defendant(s) had no dress code. Another example is Defendants' inflexibility regarding her inability to attend evening programs, unless it was carefully planned, due to her documented nighttime visual impairments.
90. Ultimately, Plaintiff was sick and a person with a disability since 1998 and never had problems with Defendant District or BOE before Defendants Hayes and Kreutzer were hired.
91. In addition to Defendants' retaliation against her for speaking out on behalf of a student at the September 1, 2011 CSE meeting, Defendants continued to retaliate against her for filing a Notice of Claim, and for filing an EEOC charge. As further described herein, BOE was negligent in the hiring of Kreutzer and Hayes. Furthermore, the BOE was negligent in their supervision of Kreutzer. Lastly, Defendants BOE and Kreutzer were negligent in their supervision of Hayes and Godin.
92. Since January 2012, Plaintiff has sent numerous letters to the Human Resources Department at KLSD documenting the chronic retaliation, harassment, discrimination, avoidance tactics, and hostile situation that Defendants Kreutzer, Hayes and Godin created. Plaintiff sent extremely specific and timely letters regarding each incident to KLSD and BOE and all Defendants' administrators. See Exhibit "E," Continued Harassment of Kristin Peterson, by Jessica Godin letter dated June 4, 2012; Exhibit "F," Letter to Ms. Schluter from Ms. Peterson dated April 10, 2011; Exhibit "G," Letter to Mr.

Kreutzer from Ms. Peterson dated July 8, 2012 in response to his letter of July 6, 2012; Exhibit "H," Letter to Ms. Hayes from Ms. Peterson dated August 1, 2012, re TCI training; Exhibit "I," Letter from K. Peterson to Mr. Persampieri re teaching assignments for 2012/2013 dated August 27, 2012; Exhibit "J," Letter from K. Peterson to S. Grebinar re filing a grievance against the District dated September 5, 2012; Exhibit "K," Letter from KP to District dated September 29, 2012; Exhibit "L," Letter from KP to Godin dated September 21, 2012; Exhibit "M," Letter from K. Peterson to J. Godin October 11, 2012; Exhibit "N," Letters from K. Peterson to J. Godin re retaliation October 21, 2012; Exhibit "O" Letter from Godin to Peterson re services for "Paul" dated October 19, 2012 and Letter from Peterson to Godin re services provided to "Paul" dated October 19, 2012; Exhibit "P," Letter from Peterson to Grebinar re Godin Harassment dated May 5, 2012; Exhibit "Q," Letter from K. Peterson to S. Persampieri re Harrassment November 15, 2012; Exhibit "R," Peterson notes on Interaction with Godin dated November 14, 2012; Exhibit "S," Letter from K. Peterson to S. Persampieri re C. Scaglione call November 20, 2012; Exhibit "T," Letter from Peterson to S. Persampieri re Crisis Training dated November 27, 2012.

93. Since September 2012, Defendant Godin, in particular, has been repeatedly hostile to Plaintiff. She avoids communications with Plaintiff and she has retaliated on numerous occasions, routinely and purposefully making a point to circumvent Plaintiff's professional influence and her ability to do her job, (calling her late to a meeting, not inviting her to meetings at all, and failing to consult with her).
94. Defendant Godin isolated Plaintiff from team decision making and makes arbitrary decisions that involve the children that Plaintiff services without consulting with her.

95. Plaintiff repeatedly complained to KLSD and BOE and all Defendants' Human Resources person, Scott Persampieri. Nonetheless, Plaintiff's complaints were never investigated by KLSD, BOE or by any Defendant.
96. With deliberate indifference, Defendants, its agents and assigns have failed to investigate Plaintiff's reports of abusive, hostile events whereby Defendants Kruetzer, Godin and Hayes have sabotaged her professional role, failed to communicate with her, denigrated her good work, and threatened her with hostile behavior, including possible termination of employment. Defendants negatively affected Plaintiff's ability to provide appropriate services to disabled students.
97. In addition, the discriminatory, harassing and retaliatory conduct prevented Plaintiff from providing state and federally mandated services to students with IEP's and Rehabilitation Act 504 Plans, (504 Plans). Plaintiff repeatedly raised these concerns with Defendants because its discriminatory, harassing and retaliatory behavior caused service disturbances for the children with special needs.
98. In response, Defendants did nothing; thus, it is not in compliance with several IEP's and 504 Plans. This has been an ongoing and continuing problem as it concerns compliance with IEP's and 504 Plans and Plaintiff routinely addressed the same.
99. On Wednesday, November 14, 2012, Defendant Godin barged into Plaintiff's office and shoved a letter onto her desk in front of her, thereby violating her workspace and disturbing what she was working on. Defendant Godin then turned around and exited.
100. Godin's demeanor was volatile and hostile. Plaintiff did not raise her voice in this exchange but Defendant Godin did.
101. Plaintiff read Defendant Godin's letter and headed to the Nurse's office to gather the

information requested.

102. Plaintiff encountered Godin on her way to the Nurse's office. Defendant Godin stepped physically in Plaintiff's way in a threatening and hostile manner and demanded a written report without specifying the method of delivery although she already possessed the pertinent information.
103. Plaintiff continued on her way to the Nurse's office, gathered the necessary information and returned to her office to complete Defendant Godin's assignment.
104. Defendant Godin has repeatedly stated in public that she has an open door policy and that faculty and staff should feel free to walk into her office anytime.
105. However, when Plaintiff delivered her assignment to Defendant Godin, her door was open. Godin grabbed it, then screamed at Plaintiff that she had to deliver the document to Ms. Winter. She continued to scream at Plaintiff in a loud, hostile and abusive manner.
106. Plaintiff felt threatened by Defendant Godin's actions and screaming so she left the office. The volatile nature of Defendant Godin's tone, her words, and her posture were threatening, abusive, and unprofessional.
107. Shockingly, it was Plaintiff who was placed on administrative leave, again, as a result of the encounter with Defendant Godin on November 14, 2012. Godin continues to work in her position as Principal.
108. Upon information and belief, KLSD and BOE and all Defendants did not investigate Defendant Godin's actions.
109. Plaintiff remains reassigned to her home indefinitely.
110. On November 29, 2012, Plaintiff filed a Complaint in New York State Court.

111. Two weeks later, on December 17, 2012, KLSD and BOE and all Defendants brought disciplinary charges against Plaintiff pursuant to Education Law Section §3020-a. Thus, KLSD and BOE and all Defendants's response to Plaintiff's initial complaint was to bring disciplinary charges against Plaintiff that could lead to termination after a hearing. Moreover, said charges mirror those in said complaint.
112. Bringing such charges against Plaintiff utterly shocks one's conscience and is quite certainly the height of retaliation.
113. As a result of Defendants' deplorable actions, Plaintiff currently requires counseling and therapy for her severe emotional distress.

FIRST COUNT - FREEDOM OF SPEECH FIRST AMENDMENT
(42 U.S.C. § 1983)

114. Plaintiff repeats, reiterates and realleges each and every allegation in the preceding paragraphs of the within Complaint, with the same force and effect as though each were more fully set forth at length herein, and further allege as follows.
115. By reason of the aforementioned retaliation against Plaintiff for advocating for the rights of the special needs children in her charge and her confrontation of KLSD and BOE and all Defendants's attorney, Emily Lucas, Defendants have deprived Plaintiff of her right to engage in protected speech in a public forum in violation of the Free Speech Clause of the First Amendment as applied to the states and their political subdivisions under the Fourteenth Amendment to the United States Constitution and 42 U.S.C. § 1983. Moreover, Defendants pattern of conduct based discrimination and retaliation directed toward Plaintiff is in violation of Plaintiffs' rights under the 1st Amendment and the 14th Amendment of the United States Constitution as enforced through the 42 U.S.C. § 1983;

116. Defendants' retaliation against Plaintiff for her speech is content- and viewpoint-based in violation of the Free Speech Clause of the First Amendment.
117. Defendants' retaliation against Plaintiff for her speech advocating for the rights of the special needs children in her charge is unreasonable, arbitrary, and capricious in violation of the Free Speech Clause of the First Amendment.
118. Plaintiff made statements regarding special needs children and her own disabilities of which KLSD and BOE and all Defendants was aware and had made accommodations for in the past.
119. As a result of Plaintiff's statements regarding the above, KLSD and BOE and all Defendants, its agents and assigns retaliated against her.
120. In fact, Defendant Kreutzer specifically stated to Ms. Grebinar that he would "get" Plaintiff and that she was "crazy." See Exhibit "C."
121. As a social worker, Plaintiff was uniquely situated to know the particular needs of the children in her charge as well as information regarding certain events that occurred between herself, Defendants Godin and Hayes.
122. Plaintiff in her capacity as social worker is most likely to be informed and have definite opinions on matters involving the education of students, and in this case, disabled students as well as interactions with KLSD and BOE and all Defendants administrators.
123. As a result of her statements, Plaintiff was ultimately placed on administrative leave in retaliation for making such statements. Plaintiffs' statements were protected activity.
124. As a direct and proximate result of Defendants' violation of the Free Speech Clause of the First Amendment, Plaintiff has suffered irreparable harm, including the loss of her constitutional rights, entitling her to declaratory and injunctive relief and more than

nominal damages.

SECOND COUNT - VIOLATION OF PLAINTIFFS' DISABILITY RIGHTS UNDER § 504 OF THE REHABILITATION ACT, 29 U.S.C. § 794 AND AMERICANS WITH DISABILITY ACT 42 U.S.C. § 12131, et. seq.

125. Plaintiff repeats, reiterates and realleges each and every allegation in the preceding paragraphs of the within Complaint, with the same force and effect as though each were more fully set forth at length herein, and further allege as follows.
126. No qualified individual with a disability shall, by reason of such disability, be excluded from participation in or be denied the benefits of the services, programs or activities of a public entity, or be subjected to discrimination by any such entity. Americans with Disabilities Act, 42 U.S.C. §12132.
127. Plaintiff suffers from disabilities, as described herein. Because Kreutzer and Hayes had issues with Plaintiff's disability and her requirements, they sought to remove Plaintiff from her position. As a result, Plaintiff suffered adverse employment actions at their hands. She was consigned to the District Office and then to her home and had a damaging Holt letter placed in her file. Plaintiff was never given a hearing prior to having a damaging Holt letter placed in her file and finally is in the process of a disciplinary hearing that could result in her termination from employment. She suffered retaliation and discrimination at the hands of KLSD and BOE and all Defendants due to her disability.
128. For purposes of employment, "Qualified Individuals with Disabilities" are persons who, with Reasonable Accommodation, can perform the essential functions of the job for which they have applied or have been hired to perform. "Reasonable Accommodation" means an employer is required to take reasonable steps to accommodate [one's] disability

unless it would cause the employer undue hardship." 29 U.S.C. §794.

129. The actions of Defendants violated Plaintiff's rights under § 504 of the Rehabilitation Act of 1973, 29 U.S.C. §794 and its regulations and the Americans with Disabilities Act 42 USCS §12131, et. seq. and its regulations.
130. As described herein, until Defendants' were deliberately indifferent in removing accommodations and more, Plaintiff was more than able to perform the essential functions of her job with reasonable accommodations.
131. By reason of the foregoing, Plaintiff was and continues to be damaged as against each of the Defendants for a sum in excess of all jurisdictional limits. Defendants are jointly and severally liable in damages and other relief as set forth herein.

**THIRD COUNT - VIOLATION OF PLAINTIFFS' RIGHTS UNDER § 504 OF THE
REHABILITATION ACT, 29 U.S.C. § 794 - RETALIATION**

132. Plaintiff repeats, reiterates and realleges each and every allegation in the preceding paragraphs of the within Complaint, with the same force and effect as though each were more fully set forth at length herein, and further allege as follows.
133. Moreover, Plaintiff's primary responsibility was to provide services for children with disabilities who were the beneficiaries of federal funding subject to section 504 of the Rehabilitation Act, 29 U.S.C. §701, et. seq., the Individuals with Disabilities Education Act, 20 U.S.C. §1400, et. seq., and Americans with Disabilities Act 42 U.S.C. §12132.
134. Plaintiff's students were within the zone of interest of the Act's requirements for the benefit of their disabled students. Defendants' hostile and retaliatory actions against Plaintiff, in that they prevented her from doing her job, negatively impacted Defendants' most vulnerable children, who have IEPs and 504 plans.

135. KLSD and BOE are a public entity.
136. Beginning with the early September 2011 CSE Meeting, Plaintiff was retaliated against and harassed by Defendant Hayes and District Counsel, for speaking out on behalf of a student and this has been an ongoing throughout the 2011-12 and 2012-13 school years.
137. As described herein, until Defendants' commenced with hostile and retaliatory measures, by removing accommodations and more, Plaintiff was more than able to perform the essential functions of her job with reasonable accommodations.
138. The actions of Defendants violated Plaintiff's rights under § 504 of the Rehabilitation Act of 1973, 29 U.S.C. §794 and its regulations. Plaintiffs'
139. By reason of the foregoing, Plaintiff was and continues to be damaged as against each of the Defendants for a sum in excess of all jurisdictional limits. Defendants are jointly and severally liable in damages and other relief as set forth herein.

FOURTH COUNT - INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

140. Plaintiff repeats, reiterates and re-alleges each and every allegation in the preceding paragraphs of the within Complaint, with the same force and effect as though each were more fully set forth at length herein, and further alleges as follows.
141. Defendants, their agents and assigns intended to inflict emotional distress on Plaintiff through their pattern and practice of hostile and discriminatory conduct and disparate treatment, for which they had no justification or excuse, that caused Plaintiff severe emotional harm. Defendants, their agents and assigns, created a hostile work environment that prevented Plaintiff from completing her daily tasks, discriminated against her due to her disability despite their knowledge of her disability, engaged in a pattern and practice of discriminatory conduct that created a hostile work environment

and caused Plaintiff severe emotional distress.

142. Defendants' conduct was extreme and outrageous. Defendants' conduct is considered to be extreme and outrageous because their conduct has been so outrageous in character, and so extreme in degree, that it goes beyond all possible bounds of decency, is atrocious, and utterly intolerable. Plaintiff is a woman over the age of forty with several disabilities of which the Defendants is aware. Nonetheless, Defendants created a hostile work environment for Plaintiff by preventing her from completing her tasks, treating her in a threatening manner and treating her differently from other employees where she was punished for engaging in the same conduct as other employees and being disciplined for it while others were not. Defendant Godin continuously treats Plaintiff in a hostile manner, precludes her from performing her job, invades Plaintiff's work space and approaches her in a threatening and violent manner. Such conduct toward a person with a known disability is extreme and outrageous.

143. Defendants' actions caused Plaintiff severe emotional distress. Plaintiff has been and continues to require counseling and therapy as it concerns the outrageous and shocking conduct she has been forced to endure at the hands of KLSD and BOE and all Defendants.

144. By reason of the foregoing, Plaintiff was and continues to be damaged as against each of the Defendants for a sum in excess of all jurisdictional limits. Defendants are jointly and severally liable in damages and other relief as set forth herein.

FIFTH COUNT - DEFAMATION

145. Plaintiff repeats, reiterates and re-alleges each and every allegation in the preceding paragraphs of the within Complaint, with the same force and effect as though each were

more fully set forth at length herein, and further allege as follows.

146. Defendants made defamatory statements about Plaintiff. Specifically, Defendants accused Plaintiff of inappropriately treating a special needs child in her charge. Plaintiff was accused of “manhandling” and “dragging” a special needs child to the bathroom. In fact, Plaintiff had worked with this child for over five years and was aware that he feared automatic flushing toilets. Plaintiff carefully brought the child in question to the bathroom and demonstrated that the toilet did not flush automatically. The child observed the demonstration and then returned to his classroom unscathed.
147. Plaintiff was labeled as a child abuser by Defendants and was removed from her position because of this incident. Plaintiff was wrongfully accused and defamed by Defendants.
148. However, Defendants never communicated the incident of child abuse and never reported it according to law to the local police. Upon information and belief, Defendants never performed an independent investigation as to whether there was or was not child abuse. This indicates that the Defendants’ accusations of child abuse against Plaintiff were false and defamatory.
149. Defendants communicated their accusations that Plaintiff was a child abuser and unfit to work with children to faculty and staff.
150. Labeling Plaintiff as a child abuser is of public concern because she is a school district employee and she works with special needs children. Disseminating these untruths about Plaintiff could cause her to be blacklisted in her industry.
151. Defendants’ dissemination of the statement that Plaintiff is a child abuser and unfit to work with children, with knowledge that this statement is untrue, constitutes negligence in light of the consequences such a statement could have.

152. Kreutzer also called Plaintiff “crazy.”
153. He made this statement to Sandra Grebinar. See Exhibit “C.”
154. Kreutzer made the statement that Plaintiff is crazy to Sandra Grebinar with knowledge that this statement is untrue because he was provided with an evaluation by psychologist, Dr. Reichman. Dr. Reichman’s report proves that Plaintiff is not “crazy.”
155. Because of KLSD and BOE and all Defendants’ statements, Plaintiff was placed on administrative leave, precluded from accessing the grounds of KLSD and prevented from performing her job.
156. Plaintiff suffered severe emotional damage from Defendants’ conduct toward her. In addition, Plaintiff has suffered loss of normal and routine salary increases, failure to be provided training opportunities necessary to keeping up with her peers at school and in the field, and failure to be considered for the same or similar school districts after making good faith applications.
157. By reason of the foregoing, Plaintiff was and continues to be damaged as against each of the Defendants for a sum in excess of all jurisdictional limits. Defendants are jointly and severally liable in damages and other relief as set forth herein.

SIXTH COUNT - DEFAMATION PER SE

158. Kreutzer called Plaintiff “crazy.” See Exhibit “C”.
159. He made this statement to union representative, Sandra Grebinar. See Exhibit “C”.
160. A statement that Plaintiff, a social worker, is crazy, is defamatory on its face.
161. It was communicated in a fixed medium.
162. Such a statement is so harmful on its face that Plaintiff need not prove special damages because it indicates that Plaintiff Peterson is unfit to perform her professional duties. But,

Plaintiff suffered severe emotional damage from Defendants' conduct toward her. In addition, Plaintiff has suffered loss of normal and routine salary increases, failure to be provided training opportunities necessary to keeping up with her peers at school and in the field, and failure to be considered for the same or similar school districts after making good faith applications.

163. By reason of the foregoing, Plaintiff was and continues to be damaged as against each of the Defendants for a sum in excess of all jurisdictional limits. Defendants are jointly and severally liable in damages and other relief as set forth herein.

SEVENTH COUNT - NEGLIGENT SUPERVISION

164. Plaintiff repeats, reiterates and re-alleges each and every allegation in the preceding paragraphs of the within Complaint, with the same force and effect as though each were more fully set forth at length herein, and further allege as follows.
165. KLSD and BOE and all Defendants had a duty to train and supervise its employees in order to prevent other employees from becoming subject to bullying, retaliation, discrimination and violence.
166. KLSD and BOE and all Defendants breached that duty by allowing Godin to repeatedly and continuously harass, intimidate, threaten and approach Plaintiff in a violent manner.
167. KLSD and BOE and all Defendants breached its duty by failing to prepare Hayes for her position.
168. KLSD and BOE and all Defendants breached its duty by hiring Kreutzer and failing to train him on preventing harassment and bullying of faculty and staff.
169. This breach of duty was a direct and proximate cause of Plaintiff's being harmed and damaged. Plaintiff was subjected to discrimination and violence, that had Defendant

administrators properly trained and supervised their employees would have been prevented.

170. KLSD and BOE and all Defendants failed in its duty to act as a reasonable and prudent employer would have done under the same or similar circumstances.
171. KLSD and BOE and all Defendants failed in its duty to adequately supervise Godin, Hayes and Kreutzer.
172. KLSD and BOE and all Defendants had prior knowledge and repeated notice of the bullying, harassment and violence directed at Plaintiff, thus Godin's, Hayes' and Kreutzer's continuing acts should reasonably have been anticipated.
173. Plaintiff's injuries were foreseeable and proximately related to the absence of adequate supervision on behalf of KLSD and BOE and all Defendants.
174. By reason of the foregoing, Plaintiff was and continues to be damaged as against each of the Defendants for a sum in excess of all jurisdictional limits. Defendants are jointly and severally liable in damages and other relief as set forth herein.

EIGHTH COUNT - NEGLIGENT HIRING, CREDENTIALING, AND TRAINING

175. Plaintiff repeats, reiterates and re-alleges each and every allegation in the preceding paragraphs of the within Complaint, with the same force and effect as though each were more fully set forth at length herein, and further allege as follows.
176. KLSD and BOE and all Defendants had a duty to exercise reasonable care in hiring, credentialing and training the Principal of the Katonah Elementary School because said Principal would have significant responsibility for children in her charge and for employees she would supervise. Such a position requires significant contact with the public. A seemingly poorly trained, unprepared, unstable or incompetent person in the

position of elementary school principal poses a threat of injury to the students at the elementary school and the employees whom she supervises.

177. KLSD and BOE and all Defendants were aware that Godin exhibited a pattern and practice of abusive, hostile, threatening, retaliatory and violent conduct toward Plaintiff and others. Such conduct caused severe emotional distress to Plaintiff and prevented her from performing her duties for the special needs children in her charge.
178. Nonetheless, KLSD and BOE and all Defendants kept Plaintiff in a position where Godin would be her supervisor.
179. It was foreseeable that if Plaintiff remained in her current position as a social worker at Katonah Elementary School with Godin as her supervisor, Godin would continue her constant abuse, threatening conduct, discrimination, retaliation and hostility toward Plaintiff.
180. Defendant KLSD and BOE and all Defendants had a duty to investigate Plaintiff's complaints regarding Godin that was triggered when Plaintiff made several complaints regarding Godin's conduct. Upon information and belief, no such investigation occurred.
181. KLSD and BOE and all Defendants had a duty to exercise reasonable care in hiring, credentialing and training the Superintendent of Schools because said Superintendent would have significant responsibility for children in his charge and for employees he would supervise. Such a position requires significant contact with the public and faculty and staff. A seemingly unprepared, poorly trained, unstable or incompetent person in the position of Superintendent of Schools poses a threat of injury to the students at KLSD and the employees whom he supervises. Moreover, the superintendent is responsible for a budget in excess of one hundred million dollars.

182. KLSD and BOE and all Defendants were aware that Kreutzer exhibited a pattern and practice of abusive, retaliatory, disparate, hostile and threatening conduct toward Plaintiff. Such conduct caused severe emotional distress to Plaintiff and prevented her from performing her duties for the special needs children in her charge.
183. Nonetheless, KLSD and BOE and all Defendants kept Plaintiff in a position where Kreutzer would be her supervisor.
184. It was foreseeable that if Plaintiff remained in her current position as a social worker at Katonah Elementary School with Kreutzer as her supervisor, he would continue to cause her severe emotional distress and prevent her from fulfilling her duties as a social worker.
185. KLSD and BOE and all Defendants had a duty to investigate the complaints made by Plaintiff regarding Kreutzer that was triggered when Plaintiff made several complaints regarding his conduct. Upon information and belief, no such investigation took place.
186. KLSD and BOE and all Defendants had a duty to exercise reasonable care in hiring, credentialing and training the Director of Special Education at KLSD because said Director would have significant responsibility for children in her charge and for employees she would supervise. Such a position requires significant contact with the public. A seemingly poorly trained, unprepared, unstable or incompetent person in the position of Director of Special Education, poses a threat of injury to the students at the elementary school and the employees whom she supervises.
187. KLSD and BOE and all Defendants were aware that Defendant Hayes exhibited a pattern and practice of incompetent, discriminatory, retaliatory, hostile conduct and disparate treatment toward Plaintiff. Such conduct caused severe emotional distress to Plaintiff and prevented her from performing her duties for the special needs children in her charge.

188. Nonetheless, KLSD and BOE and all Defendants kept Plaintiff in a position where Hayes would be her supervisor.
189. It was foreseeable that if Plaintiff remained in her current position as a social worker at Katonah Elementary School with Hayes as her supervisor, Hayes would continue to single out Plaintiff and treat her differently than other faculty and staff who were similarly situated.
190. KLSD and BOE and all Defendants had a duty to investigate the complaints made by Plaintiff regarding Hayes that was triggered when Peterson made several complaints regarding her conduct.
191. KLSD and BOE and all Defendants failed to investigate Plaintiff's complaints.
192. KLSD and BOE and all Defendants's negligent hiring was the proximate cause of Plaintiff's injuries.
193. By reason of the foregoing, Plaintiff was and continues to be damaged as against each of the Defendants for a sum in excess of all jurisdictional limits. Defendants are jointly and severally liable in damages and other relief as set forth herein.

NINTH COUNT - HOSTILE WORK ENVIRONMENT

194. Plaintiff repeats, reiterates and re-alleges each and every allegation in the preceding paragraphs of the within Complaint, with the same force and effect as though each were more fully set forth at length herein, and further alleges as follows.
195. By either the objective standard or subjective standard, Defendants have created a hostile work environment for Plaintiff.
196. The work environment was so hostile as to prevent Plaintiff from conducting his normal employment activities and work performance.

197. The workplace is permeated by discriminatory intimidation, ridicule, and insult that is sufficiently severe or pervasive as to alter the conditions of Plaintiff's employment and to create an abusive working environment, and therefore Plaintiffs civil rights as discussed above have been and continue to be violated.
198. The Defendants' conduct was so severe that it was a direct and proximate cause of a tangible psychological injury.
199. Plaintiff need not establish concrete psychological harm, but as a result of all of the facts above and Defendants repeated and continued violations of Plaintiff's civil rights, Plaintiff has suffered and continues to suffer in a hostile work environment;
200. The work environment here is perceived as hostile or abusive and therefore there is no need for the environment also to be psychologically injurious;
201. Defendants conduct violating Plaintiffs' federal civil rights and created a hostile work environment;
202. In consideration of all of the facts discussed above and suffered by Plaintiff, a hostile work environment was created;
203. As a direct and proximate cause of the defendants' creation of a hostile work environment Plaintiff has been damaged;
204. An employer is liable for the conduct of co-workers, supervisors and low level managers which create a hostile work environment if the employer acquiesced in the harassment, discrimination and retaliation, or condoned the harassment after the fact.
205. Acquiescence can be shown by the same proof which is often used to show negligence, in federal co-worker cases.
206. Kruetzer, Hayes and Godin are senior managers at KLSD.

207. KLSD and BOE and all Defendants are strictly liable for their acts that created a hostile work environment. Acquiescence in the harassment is imputed to the employer by virtue of their seniority.
208. Hayes failed to inform Plaintiff of meetings and other work-related events that she should have been a part of and discriminated against Plaintiff because of her disability. Hayes was aware of Plaintiff's disabilities and the necessary accommodations, yet she reprimanded Plaintiff for wearing clothing that would allow her to better regulate her body temperature and for adjusting her work time so that she did not have to drive at night.
209. Godin's conduct was downright abusive, threatening, retaliatory, hostile and discriminatory. Godin treated Plaintiff differently than other staff who acted in a similar manner.
210. For the above reasons, KLSD and BOE and all Defendants and the individually named Defendants are strictly liable for the hostile work environment Plaintiff was forced to work in due to the conduct of Hayes and Godin.
211. In the alternative, in the event that Hayes and Godin are not considered senior managers, KLSD and BOE and all Defendants are liable for creating a hostile work environment by its condonation of the actions of Hayes and Godin.
212. KLSD and BOE and all Defendants failed to investigate Plaintiff's complaints, it failed to apologize to her as the victim of harassment and discrimination, it failed to punish the harassers and actually punished Peterson by placing her on administrative leave. Defendants' actions show that it condoned the conduct of Kruetzer, Hayes and Godin.
213. Furthermore, upon information and belief, KLSD and BOE and all Defendants does not

have an anti-harassment policy. Absence of such a policy constitutes condonation of the harassment.

214. A causal connection exists between the hostile work environment created by Defendants and the harm suffered by Plaintiff.

215. Plaintiff suffered severe emotional distress as a result of the hostile work environment created by Defendants.

216. By reason of the foregoing, Plaintiff was and continues to be damaged as against each of the Defendants for a sum in excess of all jurisdictional limits. Defendants are jointly and severally liable in damages and other relief as set forth herein.

JURY DEMAND

111. Plaintiff demands trial by jury.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment against Defendants, and each of them as follows:

1. Declare that Defendants' actions and inactions, including Defendants' perpetuation of the hostile work environment based on harassment and bullying within KLSD and BOE and all Defendants, Defendants' discriminatory disciplinary practices and procedures, Defendants' policies for investigating and disciplining employees, and Defendants' policy and practice of ignoring or retaliating against employees who assert their rights, violate rights guaranteed by the Fourteenth Amendment to the United States Constitution as applied to the states and their political subdivisions under 42 U.S.C. § 1983 and the New York Constitution.

2. Declare that Defendants' actions and inactions, including Defendants' perpetuation of a discriminatory work environment, violate rights guaranteed by, the Civil Rights Law and the Americans with Disabilities Act.

3. For an order of the Court for supervised employee training and anti-bullying programs for all employees and students within the KLSD and BOE and all Defendants on a periodic basis at least four times during each school year.

4. For an order of the Court for supervised oversight of the above-mentioned training and programs to ensure that the training and programs are realistically and truly implemented and enforced.

5. For an order of the Court for supervised oversight of the implementation of programs aimed at preventing retaliation, bullying, harassment, intimidation and discrimination.

6. For an order of the Court for supervised oversight of the seeking and obtaining of federal grant monies for necessary programs aimed at preventing bullying, harassment, intimidation and discrimination.

7. For an order of the Court for appropriate continuing training including crisis intervention training and training that previously was denied to Peterson at KLSD and BOE and all Defendants.

8. For compensatory damages sustained by Plaintiff against all Defendants, jointly and severally, in an amount to be determined at trial.

9. For an order granting Plaintiff monetary damages for tuition and all fees, costs and expenses, direct and indirect, for continuing private education.

10. For punitive and exemplary damages according to proof against all Defendants, jointly and severally, in an amount to be determined at trial.

11. For an award of prejudgment interest, costs, disbursements, attorney fees

and expert fees.

12. For injunctive relief in the form of an order requiring Defendants to preserve all relevant documents, and an order preventing Defendants from discussing this action with each other or their employees, agents, representatives, servants and assigns, except with their respective counsel or as otherwise necessary to comply with document and discovery requests.

13. For an Order of the Court for expungement of her personnel file.

14. Damages related to pain and suffering of Plaintiff;

15. Damages to compensate Plaintiff for lost income as a result of the conduct of the Defendants;

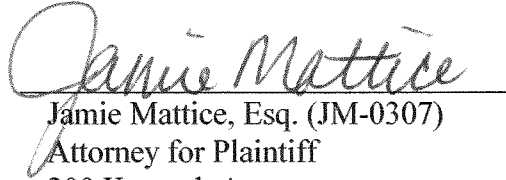
16. For such other and further relief as the Court deems equitable or appropriate under the circumstances.

WHEREFORE, Plaintiff Kristin Peterson demands judgment against Defendants, in an amount permitted by this jurisdiction plus interest, the costs, attorney fees and disbursements of this action, and such other and further relief this court deems just and proper.

Dated: Katonah, NY
May 6, 2013

LAW OFFICE OF PETER D. HOFFMAN, P.C.

By:



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